

QUIET TITLE

30. Plaintiff incorporates by reference all the above factual allegations.
31. Bourne Street in Manchester, New Hampshire as shown on HCRD Plan #16103 was first laid out on HCRD Plan #538A and HCRD Plan #719 (then known as Beech Avenue).
32. There has never been a formal dedication and acceptance for Bourne Street by the City of Manchester, nor are there any return or layout of the road in the records of the City of Manchester.
33. The portion of Bourne Street that is the subject to this Petition has never been opened or built for public use.
34. According to HCRD Plan #16103, some portion of Bourne Street was discontinued on April 8, 1972 (see Exhibit 1).
35. It is a well-established principal in New Hampshire that "...conveyance of property bounded by a street or highway normally conveys title to the center of the boundary street" (*Duchesnaye v. Silva*, 118 N.H. 728, 732 (1978)). This presumption exists whether or not the deed description references a plan. (*Duchesnaye* at 732)
36. The northerly sideline of the T&L Property is abutted entirely by the land known as Bourne Street in Manchester, New Hampshire.
37. Because the northerly sideline of the property conveyed to T&L Property is abutted entirely by Bourne Street and conveyance of property bounded by a street or highway normally conveys title to the center of the boundary street; T&L Property is the lawful owner of the southerly one-half of Bourne Street as labeled as "Portion of Bourne Street to be added to Map 554, Lot 17C" on Exhibit 2.
38. The Tran Property, Allard Property, Hall Property, Cecenas Property and Horne Property are each abutted on their southerly boundary line by Bourne Street and as such are only